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Tentative Ruling

Gonzalez v. 15116 Parthenia Street,

Case no. 26VECV03031

Hearing date August 27, 2026

Defendant

15116's Demurrer and Motion to Strike the Complaint

Plaintiff

Gonzalez sues defendant 15116 Parthenia Street, Inc. for violations of Los Angeles Municipal Code §§151.04 and 151.10, as well as declaratory relief.

Defendant demurs to both and moves to strike the first four paragraphs.

Plaintiff opposes.

Defendant 15116's Demurrer to the Complaint

"The

function of a demurrer is to test the sufficiency of the complaint as a matter

of law." Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th

1413, 1420. A complaint "is sufficient if it alleges ultimate rather than

evidentiary facts." Doe v. City of Los Angeles (2007) 42 Cal.4th 531,

550, but plaintiff must allege essential facts "with reasonable precision and

with particularity sufficient to acquaint [the] defendant with the nature,

source and extent" of the plaintiff's claim. Doheny Park Terrace Homeowners

Ass'n., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.

Defendant

demurs to the first cause of action for violations of LAMC §§151.04 and 151.10 as uncertain. "[S]tatutory causes of action must be pleaded with particularity." *Covenant Care, Inc. v. Superior Ct.* (1985) 32 Cal.4th 771, 790. The first cause of action identifies 13 potential individual bases for the alleged violations. See Compl., para. 16. The complaint alleges defendants "demanded, accepted, or retained excess rent by one or more" of the 13 alleged violations. *Id.* at para. 16.

Plaintiff

argues the particular means by which defendant illegally or impermissibly elicited or increased rent can be ascertained by documents in defendant's own possession, permitting plaintiff to plead with less particularity. *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 474 (holding "less particularity is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff."). This argument is unavailing.

While

a plaintiff need not plead exactly how a defendant allegedly engaged in a specific alleged violation, plaintiff cannot simply list 13 potential violations and assert defendant engaged in "one or more." Compl., para. 16. California pleading law requires that a complaint be pled with sufficient particularity that a defendant knows exactly of what they are being accused. *Doheny Park Terrace Homeowners Ass'n., Inc.*, *supra*. Plaintiff must allege with particularity which of the violations defendant allegedly committed. SUSTAINED with 15 days leave to amend.

Defendant

demurs to the declaratory relief claim as superfluous. "[A]n action in declaratory relief will not lie to determine an issue which can be determined in the underlying ... action. 'The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.'" *California Ins. Guaranty Assoc. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623. Defendant argues adjudication of the first cause of action would result in the same relief requested in the second, i.e., a judicial determination of the rent owed by plaintiff or creditable by defendant.

Plaintiff

argues her tenancy and rent obligations are ongoing, and the complaint prays for additional relief in the second cause of action not requested under the first. See Compl., prayers 1(a)-(g), 2(a)-(i). Where a relationship between the parties continues, a suit on the matured claim is not an adequate substitute for a declaration that will “guide their future conduct.” *Warren v. Kaiser Foundation Health Plan, Inc.* (1975) 47 Cal.App.3d 678, 683-684.

The

ongoing nature of plaintiff’s tenancy, coupled with the prayer for judicial determination of future rent and rent increases, distinguishes the second cause of action from the first. The second cause of action is not superfluous.

OVERRULED.

Defendant 15116’s Motion to Strike

Defendant

moves to strike the first four paragraphs of the complaint as irrelevant and inflammatory. As the court sustained the demurrer to the first cause of action with leave to amend, the motion to strike is MOOT.

The

first four paragraphs contain general allegations regarding the state of renting and housing in Los Angeles, not particularized to this case. The court reminds the parties that unnecessarily inflammatory and conclusory language has no place in a pleading.